

- An application for a protection order may also be made either from the **barangay** or the **court**.

What is a Protection Order?

- It is an order issued in order **to prevent further acts of violence against a woman or her child. Its purpose is to safeguard the victim from further harm**, minimizing any disruption in the victim's life, and facilitating the opportunity and ability of the victim to independently regain control over her life.

Who may apply for a Protection Order?

- A petition for protection order may be filed by any of the following:
- (a) The offended party;
- (b) Parents or guardians of the offended party;
- (c) Ascendants, descendants or collateral relatives within the fourth civil degree of consanguinity or affinity;
- (d) Officers or social workers of the DSWD or social workers of local government units (LGUs);
- (e) Police officers, preferably those in charge of women and children's desks;
- (f) Punong Barangay or Barangay Kagawad;
- (g) Lawyer, counselor, therapist or healthcare provider of the petitioner;
- (h) At least two (2) concerned responsible citizens of the city or municipality where the violence against women and their children occurred and who has personal knowledge of the offense committed.

DON'T BE AFRAID TO ASK FOR HELP!

VAWC Hotlines during Community Quarantine

POLICE / INVESTIGATION

PNP Hotline: 177

Aleng Pulis Hotline: 0919 777 7377

PNP Women and Children Protection Center

24/7 AVAWCD Office: (02) 8532-6690

Email address: wcpc_pnp@yahoo.com /

wcpc_vawcd@yahoo.com / avawcd.wcpc@pnp.gov.ph

LEGAL ASSISTANCE

Public Attorney's Office (PAO)

Hotline: (02) 8929-9436 local 106, 107, or 159 (local "0" for operator)

(+62) 9393233665

Email address: pao_executive@yahoo.com

REFERRAL SERVICES

Inter-Agency Council on Violence Against Women and their Children

Mobile numbers: 09178671907 | 09178748961

Email address: iacvawc@pcw.gov.ph



**The National Defense College
of the Philippines
supports the
18-Day Campaign
to End Violence Against Women**



**YOUR
ANTI-VAWC
LEGAL RIGHTS**

WHAT IS VIOLENCE AGAINST WOMEN (VAW)?

It is any act or series of acts committed by any person against a woman who is **his wife, former wife, or against a woman with whom the person has or had a sexual or dating relationship, or with whom he has a common child, or against her child whether legitimate or illegitimate**, within or without the family abode, which result in or is likely to result in physical, sexual, psychological harm or suffering, or economic abuse including threats of such acts, battery, assault, coercion, harassment or arbitrary deprivation of liberty.

Who is protected under the law?

The law seeks to protect the family and its members, particularly the women and children recognizing the unequal relations between a man and woman especially in an abusive relationship where the woman is usually at a disadvantage. **However, the law does not exclude women from being held liable under the law.** Women with whom the victim had a sexual or dating relationship or has a common child, legitimate or illegitimate are also held liable.

Why are such acts penalized?

These acts are penalized as the State **values the dignity of women and children and guarantees full respect for human rights and the need to protect the family and its members**, particularly women and children, from violence and threats to their personal safety and security.

WHAT ARE THE ACTS PENALIZED BY LAW?

Physical Violence

- It refers to bodily or physical harm

Sexual Violence

- It refers to bodily acts causing or attempting to cause the victim to engage in any sexual activity by force, threat of force, physical or other harm or threat of physical or other harm or coercion;

Psychological Violence

- These are acts or omissions causing or likely to cause mental or emotional suffering of the victim such as but not limited to intimidation, harassment, stalking, damage to property, public ridicule or humiliation, repeated verbal abuse and marital infidelity.

Economic Abuse

- These are acts that make or attempt to make a woman financially dependent which includes, but are not limited to:
 - Withdrawal of financial support or preventing the victim from engaging in any legitimate profession, occupation, business or activity, except in cases wherein the other spouse/partner objects on valid, serious and moral grounds as defined in Article 73 of the Family Code;
 - Deprivation or threat of deprivation of financial resources and the right to the use and enjoyment of the conjugal, community or property owned in common;
 - Destroying household property;
 - Controlling the victims' own money or properties or solely controlling the conjugal money or properties.

WHAT CAN WOMEN DO UNDER THE LAW?

- These acts may be reported immediately at the **barangay level**. The barangay is responsible for verifying the information and may seek assistance from the police.
- The act/s may also be reported directly to the **police station** for the prosecutor to verify the complaint and formally file the case to the court. The Regional Trial Court (RTC) designated as a Family Court shall have jurisdiction over the case. In absence of a Family Court in the place where the act/s were committed, it may be filed in the RTC where the crime or any of its elements was committed.

Who may file a complaint?

- **Any citizen** having personal knowledge of the circumstances in the commission of the crime may file a complaint.

Is there a time limit for filing a complaint?

- The acts under Sections 5(a) to (f) may be filed within 20 years, while those in Sections 5(g) to (i) may be filed within 10 years from their occurrence or commission.